Code of Practice for Employment Agencies

勞工處
Labour Department

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Chapter 1

Introduction

1.1 The Commissioner for Labour (C for L) regulates employment agencies (EAs) through licensing, inspections, and complaint investigations pursuant to Part XII of the Employment Ordinance (EO) (Cap. 57) and the Employment Agency Regulations (EAR) (Cap. 57A). These legal provisions apply to all EAs in Hong Kong. Under section 50(1) of EO, an EA is defined as "a person who operates a business the purpose of which is to obtain employment for another person; or to supply the labour of another person to an employer, whether or not the person who operates the business will derive any pecuniary or other material advantage from either the employer or such other person".

1.2 Section 62A(1) of EO provides that C for L may issue codes of practice setting out principles, procedures, guidelines and standards for the operation, management or control of EAs. In accordance with the provision, C for L promulgated this Code of Practice for Employment Agencies (CoP) for EAs to follow in business operation so as to promote professionalism and service quality in the industry. If the licensee or person intending to be the licensee, a related person[1] of or an individual employed by such licensee or person intending to be the licensee fails to comply with this CoP, C for L may refuse to issue or renew an EA licence, or may revoke an EA licence under section 53(1) of EO. The provision empowers C for L to exercise such power if he/she is satisfied on reasonable grounds that –

(a) the name under which the EA is operated or is intended to be operated –

(i) is identical with the name of another EA which is being, or has been, carried on by another person; or

(ii) so nearly resembles the name of another EA as to be likely to deceive the public;

(b) the EA is being, or is likely to be, used for unlawful or immoral purposes;

(c) the licensee or the person intending to be the licensee–

(i) is an undischarged bankrupt;

(ii) has, within the preceding five years, been convicted of an offence against the person of a child, young person or woman or of an offence involving membership of a triad society, fraud, dishonesty or extortion;

[1] A related person means, in relation to a company, a director, manager, secretary, or other similar officer of the company; or in relation to a partner in a partnership, another partner in the partnership or another person concerned in the management of the partnership.

(iii) has knowingly furnished to C for L any false or misleading information in connection with his/her application for the issue or renewal of the licence;

(iv) has contravened any provision of Part XII of EO or any regulation made under section 62[2] of EO;

(iva) has not complied with a code of practice issued under section 62A(1) of EO; or

(v) is not, for any other reason, a fit and proper person to operate an EA;

(d) (if the licensee or the person intending to be the licensee is a company or a partner in a partnership) a related person of the licensee or person–

(i) has, within the preceding five years, been convicted of an offence against the person of a child, young person or woman or of an offence involving membership of a triad society, fraud, dishonesty or extortion;

(ii) has contravened any provision of Part XII of EO or any regulation made under section 62 of EO; or

(iii) has not complied with a code of practice issued under section 62A(1) of EO; or

(e) an individual employed by the licensee or by the person intending to be the licensee –

(i) has contravened any provision of Part XII of EO or any regulation made under section 62 of EO; or

(ii) has not complied with a code of practice issued under section 62A(1) of EO.

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[2] According to section 62 of EO, the Chief Executive in Council may make regulations for all or any of the following purposes –

(a) prescribing the procedure for the issue of licences and certificates of exemption (CoE);

(b) fixing the fees to be paid for the issue and renewal of a licence or CoE and the method of payment of such fees;

(c) prescribing the procedure to be followed when a licensee or holder of a CoE -

(i) ceases to operate his EA; or

(ii) changes the place of business of his EA;

(d) prescribing the procedure to be followed when –

(i) a company is issued with a licence or CoE; and

(ii) there is a change in the management of the company;

(e) requiring a licensee and the holder of a CoE to display his licence or CoE conspicuously at the place of business of the EA;

(f) providing for the publication in the Gazette of particulars of all licences and CoEs;

(g) prescribing the nature of services in respect of which an EA may charge and receive any fee, commission or expenses;

(h) prescribing the maximum fees and charges which may be charged and received by an EA;

(i) prescribing any thing which is to be or may be prescribed under Part XII of EO; and

(j) generally for the better carrying out of the provisions and purposes of Part XII of EO.

EAR is made under section 62 of EO.

1.3 Non-compliance with the requirements and standards in this CoP by the EA licensee or the person intending to be the licensee, a related person of or an individual employed by the licensee or the person intending to be the licensee is a ground upon which C for L may refuse to issue or renew, or revoke a licence under sections 53(1)(c)(iva), 53(1)(d)(iii) and 53(1)(e)(ii) of EO.

1.4 This CoP consists of two major parts, namely Chapters 3 and 4. Chapter 3 restates the salient legislative requirements in EO and EAR that EAs must follow in their business operations. It also sets out the provisions of legislation administered by other government departments and related organisations which are considered the most relevant to the operation of EAs. Apart from complying with these legal provisions, EAs should also pay attention to the guidelines or requirements issued or updated by the relevant departments and organisations from time to time (if any). Chapter 4 sets out the minimum standards which C for L expects from EAs.

1.5 To enhance transparency, the Employment Agencies Portal (https://www.eaa.labour.gov.hk) of the Labour Department (LD) publishes a list of licensed EAs and relevant information, including basic licence information, addresses of EAs, as well as information provided by EAs, such as contact information, placement types and information on temporary accommodation provided (if any), for verification by members of the public. For the purpose of protecting the public interest, LD may also publish information and post information on its website when an EA has been convicted, the licence of an EA has been revoked or its application for renewal has been refused, and/or when C for L has issued any warning or taken any disciplinary action against an EA.

1.6 This CoP should be read by all EA licensees, nominated operators[3], related persons of and individuals employed by the licensees or the person intending to be the licensee, as well as parties interested in joining the EA business. It should be stressed that this CoP does **NOT** replace EO and EAR. EO, EAR, the Immigration Ordinance (IO) (Cap. 115), the Trade Descriptions Ordinance (TDO) (Cap. 362), the Personal Data (Privacy) Ordinance (PDPO) (Cap. 486), the Prevention of Bribery Ordinance (POBO) (Cap. 201), and all other relevant laws of Hong Kong (including anti-discrimination legislation)

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[3] According to regulation 7 of EAR, a company to which a licence is issued shall notify C for L in writing of the name of an individual who is –

(a) an associate (as defined by section 50(1) of EO) of the company; and

(b) appointed by the company to operate, manage or assist in the management of the employment agency in respect of which the licence is issued.

This appointed person is referred to as the "nominated operator" in this CoP.

remain the sole authority for the provisions explained in this CoP. EA licensees, nominated operators, related persons of and individuals employed by the licensees and applicants for EA licences shall refer to the relevant provisions at all times. In case of doubt, EAs or applicants for EA licences may approach the government departments and related organisations concerned, including but not limited to:

(a) the Employment Agencies Administration (EAA) of LD for enquiries on EO and EAR;

(b) the Immigration Department (ImmD) for enquiries on IO;

(c) the Customs and Excise Department (C&ED) for enquiries on TDO;

(d) the Office of the Privacy Commissioner for Personal Data (PCPD) for enquiries on PDPO;

(e) the Equal Opportunities Commission (EOC) for enquiries relating to anti-discrimination legislation; and

(f) the Independent Commission Against Corruption (ICAC) for enquiries on POBO.

It is also important to note that compliance with this CoP does not in itself confer immunity from legal obligations in Hong Kong.

1.7 According to section 62A(2) of EO, C for L is to make a copy of every code of practice available for inspection by the public free of charge during business hours at offices of the Government directed by C for L. Members of the public may inspect this CoP for free at EAA of LD during office hours (Address: Unit 906, 9/F, One Mong Kok Road Commercial Centre, 1 Mong Kok Road, Kowloon). This CoP may also be downloaded from the Employment Agencies Portal (https://www.eaa.labour.gov.hk).

1.8 C for L may amend and update this CoP as and when necessary, particularly having regard to legislative changes and business practices of EAs.

Chapter 2

Interpretation and abbreviations

2.1 Interpretation

2.1.1 In this CoP –

"associate"(相關人士) means a related person of or an individual employed by the licensee or the person intending to be the licensee of an EA.

"duplicate licence" (牌照複本) means a duplicate of a licence issued under section 52(2B) of EO for each branch location of an EA where a licensee operates an EA at more than one place of business.

"employment agency" (職業介紹所) means a person who operates a business the purpose of which is -

(a) to obtain employment for another person; or
(b) to supply the labour of another person to an employer,

whether or not the person who operates the business will derive any pecuniary or other material advantage from either the employer or such other person.

"foreign domestic helper" (外籍家庭傭工) means a person who is admitted into Hong Kong for full-time, live-in employment with a specific employer to perform domestic duties at the employer's residence specified in the Standard Employment Contract (SEC) (ID 407).

"job seeker" (求職者) means a person who is looking for employment or has been placed in employment by a relevant EA.

"nominated operator" (被提名經營者) means the person appointed by the company to which a licence is issued to operate, manage, or assist in the management of the EA in accordance with regulation 7 of EAR.

"prescribed commission" (訂明佣金) means the maximum commission which may be charged and received by an EA as specified in regulation 10 and Part II of the Second Schedule of EAR, which is no more than 10% of the first-month's wages received by a job seeker after he/she has been placed in employment by an EA.

"prescribed records and returns" (訂明的紀錄及申報表) means a record maintained by a licensee as required under section 56 of EO of all job seekers registered with his/her EA containing the person's name, address, Hong Kong Identity Card (HKID) number (or in the case of a non-resident, passport number and citizenship), fee and commission received, date of employment and name and address of employer.

"related person" (有關連人士) means, in relation to a company, a director, manager, secretary, or other similar officer of the company; or in relation to a partner in a

partnership, another partner in the partnership or another person concerned in the management of the partnership.

2.1.2 Unless specified otherwise, the terms and expressions used in this CoP shall have the same meaning assigned to them under Part XII of EO and EAR.

2.2 Abbreviations

2.2.1 The abbreviations used in this CoP shall have the following meanings :

C for L	Commissioner for Labour
CG	Consulate-General
C&ED	Customs and Excise Department
CoE	Certificate of Exemption
CoP	Code of Practice for Employment Agencies
EA	Employment agency
EAA	Employment Agencies Administration of the Labour Department
EAR	Employment Agency Regulations (Cap. 57A)
ECO	Employees' Compensation Ordinance (Cap. 282)
EO	Employment Ordinance (Cap. 57)
EOC	Equal Opportunities Commission
FDH	Foreign domestic helper
HKID	Hong Kong Identity Card
HKSAR	Hong Kong Special Administrative Region
ICAC	Independent Commission Against Corruption
ImmD	Immigration Department
IO	Immigration Ordinance (Cap. 115)
LD	Labour Department
MAW	Minimum Allowable Wage
PCPD	Office of the Privacy Commissioner for Personal Data
PDPO	Personal Data (Privacy) Ordinance (Cap. 486)
POBO	Prevention of Bribery Ordinance (Cap. 201)
SEC	Standard Employment Contract prescribed by the HKSAR Government for hiring foreign domestic helpers from abroad (ID 407) or workers imported under labour importation schemes
TDO	Trade Descriptions Ordinance (Cap. 362)

Chapter 3

Statutory requirements in relation to operating an employment agency

3.1 Introduction

3.1.1 This chapter lists out the salient statutory requirements which EAs must observe. They are by no means exhaustive and EAs shall ensure that their operations are in full compliance with all laws of Hong Kong at all times. Failure to comply with the laws may lead to legal consequences, including prosecution. C for L may also consider revoking or refusing to renew the licence of the EA concerned.

3.2 All EAs must be licensed before commencing operation

3.2.1 Save for the exceptions as provided under section 50(3) of EO[4], only a holder of an EA licence or Certificate of Exemption (CoE)[5] or an associate of the holder may operate, manage or assist in the management of an EA in Hong Kong.

3.2.2 A licensed EA shall only operate its business at the place of business specified in the licence or CoE. A duplicate licence must be obtained for each branch office(s) of the EA located at different address(es).

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[4] Part XII of EO and EAR do not apply to any EA –

(a) which is carried on or subvented by the Hong Kong Government;

(b) which is carried on under the terms of a permit to maintain a crew department granted or deemed to be granted under the Merchant Shipping (Seafarers) Ordinance (Cap. 478);

(c) which is carried on by an employer for the sole purpose of recruiting persons for employment on his own behalf;

(d) which is carried on by a contractor, or sub-contractor, who employs any person on work for another person;

(e) which is carried on by the proprietor of a newspaper or other publication if the operation of an EA is non-profit making and is not the principal purpose of the publication of the newspaper or other publication;

(f) which is –

(i) non-profit making;

(ii) wholly maintained, or managed by the owner, staff or students of a school, college, university or other educational institution recognised by the Permanent Secretary for Education; and

(iii) carried on solely for or in connection with the employment of the students or graduates of such school, college, university or other educational institution; or

(g) subject to any regulations which may be applicable thereto, in respect of which a CoE has been issued.

[5] Pursuant to section 54(1) of EO, C for L may, upon application in such manner as may be prescribed, exempt an EA from obtaining a licence under section 52 of EO, subject to conditions as he/she may specify, if he/she is satisfied that the EA is non-profit making and should, in the public interest, be so exempted. C for L shall issue to any person exempted under section 54(1) a CoE. EAs granted a CoE are still subject to the regulations stipulated in Part XII of EO and EAR.

3.2.3 Operating an EA without a valid licence or a CoE is an offence and is liable on conviction to **a maximum penalty of a fine of $350,000 and to imprisonment for three years.** LD may initiate prosecution against any unlicensed operation without prior warning.

3.2.4 No person other than the licensee shall use or make use of, directly or indirectly, an EA licence. The licensee shall not lend, transfer or assign an EA licence to another person.

3.2.5 Any person or entity who operates a business either to obtain employment for another person or supply the labour of another person to an employer must obtain an EA licence or a CoE, regardless of the mode of his/her operation (e.g. providing job matching services on websites or mobile applications, etc.) and whether the user will be charged for the service.

3.2.6 The laws of Hong Kong do not require EAs to provide other ancillary services for job seekers and/or employers (e.g. providing job seekers with pre-employment training, visa processing, school search for their children, airport transfer, temporary accommodation arrangement, etc.). However, if any of such services are offered, EAs must ensure that necessary approval(s) or licence(s) have been obtained from the relevant government departments and related organisations. EAs must also comply with the relevant laws in relation to provision of such services.

3.3 Manner and form for applying for a licence

3.3.1 To apply for an EA licence, the applicant shall submit an application not later than one month before the intended date for commencement of business to EAA in the prescribed form together with other required documents. Where the applicant is a company, the application shall be submitted by a director of the company on its behalf. It is the applicant's responsibility to ensure that all information and supporting documents required are provided in a timely manner. Failure to provide the necessary information and/or documents may result in the licence application being delayed or refused. Anyone who furnishes false information in connection with any licence application shall be guilty of an offence and liable on conviction to **a maximum penalty of a fine of $50,000.**

3.3.2 A licensee shall ensure that his/her EA licence (including any duplicate licence(s)) is renewed before the present one expires. The renewal application shall be submitted to EAA not later than two months before the expiration of the EA licence.

3.3.3 Submitting an application does not necessarily mean that an EA licence will be granted, or the applicant is deemed to be authorised to commence operation of an EA. The licence applicant must not start any operation or provide any service before an EA licence has been granted, or continue business when the existing licence has expired

but yet to be renewed. Otherwise he/she shall be guilty for operating an EA without a valid EA licence.

3.3.4 For more details about the procedures and documents required for the application and renewal of an EA licence, please refer to the "Practical Guide for Operating an Employment Agency" issued by LD and uploaded onto the Employment Agencies Portal (https://www.eaa.labour.gov.hk).

3.4 Requirements under EO and EAR when EA is in business

3.4.1 The EA licence (or the duplicate licence in the case of a branch office) as well as Part II of the Second Schedule of EAR regarding the prescribed commission shall be displayed in a prominent position at the place of business of an EA.

3.4.2 The licensee shall maintain a record showing particulars of every person who registers with his/her EA for employment. The record shall contain the job seeker's name, address, HKID number (or a passport number and citizenship if the job seeker is not a Hong Kong resident), fee and commission received, date of employment as well as name and address of employer. A sample of the record sheet is at **Appendix 1**. Such record shall be retained for a period of not less than 12 months after the expiration of each accounting year of the EA, and shall be kept at the EA's place of business (i.e. the licensed address) to be made available for inspection by LD.

3.4.3 The EA licence (including any duplicate licence(s)), as well as the Second Schedule of EAR regarding the prescribed commission, shall be displayed conspicuously at the place of business of an EA. The records of job seekers' particulars mentioned in paragraph 3.4.2 shall also be made available for inspection by LD at all reasonable times at the place of business of an EA. Failure to do so is an offence liable on conviction to **a maximum penalty of a fine of $10,000**. Prosecution may be instituted without prior warning.

3.4.4 The licensee shall notify EAA in writing of any change of the nominated operator or related persons of the licensee within 14 days after such change. In the case where the change is the place of EA business, the licensee shall give notice to EAA not less than 14 days prior to such change. Failure to do so is an offence liable on conviction to **a maximum penalty of a fine of $10,000**.

3.4.5 In the event of cessation of business, the licence (including any duplicate licence(s)) shall be returned to EAA within 7 days after the cessation of business. Failure to do so is an offence liable on conviction to **a maximum penalty of a fine of $10,000**.

3.4.6 Below is a summary of the timeframes within which EAs are required to submit various notifications to EAA. Please refer to the "Practical Guide for Operating an Employment Agency" for details–

- Change of nominated operator – within 14 days after the change
- Change of related persons of the licensee – within 14 days after the change
- Change of individuals employed by the licensee – within 14 days after the change
- Change of place of EA business – not less than 14 days before the change
- Cessation of EA business – within 7 days after the cessation of business

3.5 Fees that may be charged by EAs

3.5.1 EAs must strictly observe the requirements under section 57 of EO that they must not, directly or indirectly, receive from job seekers reward of any kind, or any payment or advantages in respect of expenses or otherwise (e.g. photocopying fees, visa processing fees), except the prescribed commission. According to regulation 10 and Part II of the Second Schedule of EAR, the maximum commission which may be received by an EA for each job placement shall be, from each person applying for employment, work or contract or hire of his/her services, an amount not exceeding a sum equal to 10% of the first-month's wages received by such person after he/she has been successfully placed in employment by an EA. The prescribed commission shall only be charged after the job seeker has received his/her first-month's wages, rather than be charged in advance. An EA licensee, an associate of the licensee or a person purporting to act as such licensee or associate who contravenes the relevant law commits an offence and shall be liable on conviction to **a maximum penalty of a fine of $350,000 and to imprisonment for three years**.

3.5.2 The fees, if any, that EAs may charge job seekers for any ancillary services in relation to or in connection with obtaining or seeking to obtain employment for job seekers, together with the commission for placement service, must not exceed the prescribed commission as set out in paragraph 3.5.1 above.

3.5.3 If an EA licensee, a nominated operator, a related person of or an individual employed by the licensee; or the person intending to be the licensee, a nominated operator, a related person of or an individual employed by the person intending to be the licensee has been/is convicted of charging a job seeker a commission in excess of the prescribed commission, C for L may refuse to issue or renew, or revoke the licence of the EA concerned in accordance with section 53(1) of EO.

3.5.4 EAs should also observe the requirements under POBO, including not to solicit, accept or offer any bribe in conducting the EA's business or affairs. Contravention of the relevant law is an offence. ICAC has developed a wide range of corruption prevention

publications[6] and provides free corruption prevention advisory service. EAs should familiarise themselves with the relevant laws and consult ICAC (on the relevant laws as well as any corruption prevention advice) where necessary.

3.6 Protecting personal information of employers and job seekers

3.6.1 EAs are required under EO and EAR to maintain records showing particulars of every registered job seeker. When handling the personal information of employers and job seekers, EAs shall also observe the requirements under PDPO. Generally speaking, the personal data collected shall be directly related to the purpose for which they are collected and shall not be kept longer than necessary for the said purpose unless permissible under PDPO.

3.6.2 EAs shall also consider carefully whether and what kind of information about job seekers would be made available to prospective employers having regard to PDPO's requirements. Collection of personal data shall be necessary and not excessive to achieve the purposes of collection. EAs shall inform job seekers and employers in full on the intended use of the personal data collected and their rights of requesting access to such data, and ensure that they have agreed in writing to the proposed uses. To ensure openness and transparency in handling personal data, EAs shall prepare a statement of policy which expresses their overall commitment in protecting the privacy interests of individuals, as well as a statement of practices which include the kinds of personal data held by EAs and the main purposes for which they use the data.

3.6.3 EAs shall consider whether the public posting of job seekers' information is necessary or permissible under PDPO. Generally speaking, the public posting of photographs and basic information (such as skills and capabilities) of job seekers by EAs may enhance job seekers' chances of securing employment and assist the initial screening process by prospective employers. However, unless with express and written consent from owners of such personal data for the specified purpose, EAs should not post, display or disclose personal information of the data subjects publicly. EAs should also warn those who browse or view such information that the relevant personal data must not be used for any purpose unrelated to selecting job seekers and/or recruitment. EAs should also refer to the standards stipulated in paragraph 4.15.1 for arrangements concerning the public posting, display or disclosure of personal data of job seekers or related individuals.

3.6.4 EAs should not transfer personal data to any parties for purposes unrelated to the provision of their services. They should be aware of the specific requirements for use of

[6] The relevant publications and information are available at the website of ICAC : https://cpas.icac.hk/EN/Info/Lib_Index?cate_id=3

personal data in direct marketing activities under PDPO. In general, EAs must notify and obtain consent from job seekers and employers before such use. A response channel should also be provided by EAs in the notification so that job seekers and employers may communicate their consent.

3.6.5 EAs shall also take all reasonably practicable steps to ensure that the personal data held by them is protected against unauthorised or accidental access, processing, erasure, loss or use. To achieve this, EAs should ensure that paper files containing personal data are kept under lock in a secure area. EAs should have in place a secure IT computer network for storage and processing electronic data (e.g. with up-to-date software enabling password-control and proper encryption), with access limited to authorised personnel on a need-to-know basis. When EAs dispose of storage containing personal data, practical steps must be taken to ensure that such data is permanently erased by means of physical destruction and/or digital deletion and cannot be retrieved after the disposal.

3.7 Carrying out other activities at EA's licensed address

3.7.1 An EA must ensure that necessary approval(s) or licence(s) have been obtained from relevant government departments and related organisations before conducting any other activities (e.g. holding training classes or providing temporary accommodation) or non-EA related business (e.g. food business) in his/her EAs' licensed address or other premises; and the relevant laws, regulations and licensing requirements are complied with at all times.

3.7.2 Should EAs use their EA premises to provide boarding facilities or bedspaces (especially for job seekers like foreign domestic helpers (FDHs) who come from outside Hong Kong), or provide such facilities in other non-EA premises to job seekers, they must ensure that relevant approval(s) or licence(s) for operating the boarding facilities or bedspaces have been obtained from all relevant government departments and related organisations, and the prescribed standards in respect of building structure, fire safety as well as health and hygiene as specified in the relevant laws of Hong Kong and/or any other licensing requirements as devised for such facilities (if applicable) are fully and satisfactorily met at all times. The relevant legislation and requirements are set out at **Appendix 2**. Furthermore, the fees EAs may charge job seekers for the provision of placement services, together with the ancillary services provided in relation to or in connection with obtaining or seeking to obtain employment for job seekers, must not exceed the prescribed commission as explained in paragraph 3.5.1 above.

3.8 Adopting fair trade practices

3.8.1 In their commercial practices, EAs must not deploy against consumers unfair trade practices prohibited by TDO, including false trade descriptions, misleading omissions, aggressive commercial practices, bait advertising, bait-and-switch and

wrongly accepting payment. C&ED is the principal enforcement agency of TDO. Convicted traders may be liable to **a maximum penalty of a fine of $500,000 and to imprisonment for five years.** For more information on unfair trade practices, please refer to the publicity materials of C&ED[7].

3.8.2 Unlike the placement of local job seekers where they could meet the prospective employers before signing employment contracts, and where prospective employers would have more knowledge and channels to verify the academic qualifications, work experience, date of availability, etc. of local job seekers, prospective employers of non-local job seekers (including FDHs) would mostly rely on the information provided by EAs in deciding whether to employ the job seekers concerned. Likewise, non-local job seekers (including FDHs) would rely heavily on the information provided by EAs regarding the employers to decide whether to accept offers by the prospective employers. In other words, EAs will, in most of the cases, be the only information source for both non-local job seekers (including FDHs) and their prospective employers. Therefore, EAs must not take advantage of employers and job seekers in the course of service provision.

3.8.3 EAs must observe the statutory requirements against unfair trade practices prohibited by TDO as mentioned in paragraph 3.8.1 above or they may be liable for an offence, subject to **a maximum penalty of a fine of $500,000 and imprisonment for five years** upon conviction.

3.9 Observing immigration laws

3.9.1 When the placement involves non-local job seekers, EAs must observe the relevant immigration requirements and restrictions relating to the employability of job seekers.

3.9.2 EAs shall not aid or abet job seekers or employers to breach the job seekers' conditions of stay in Hong Kong, or otherwise the EAs concerned may be liable for an offence, subject to **a maximum penalty of a fine of $50,000 and imprisonment for two years.**

3.9.3 If the placement involves FDHs, EAs should note that FDHs are granted permission to stay and work in Hong Kong only during the contractual period, which is normally two years as stated in the SEC unless the contracts are prematurely terminated. Under the prevailing policy, FDHs shall leave Hong Kong within two weeks from the date of employment contract termination or upon completion of employment contract, whichever is earlier. EAs shall not aid or abet FDHs to overstay, or otherwise the EAs concerned may be liable for an offence as mentioned in paragraph 3.9.2 above.

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[7] The publicity materials are available on the website of C&ED:
https://www.customs.gov.hk/en/service-enforcement-information/consumer-protection/trade-desc/unfair/index.html

3.9.4 Pursuant to Clause 3 of the SEC, FDHs are required to work and reside in the employer's residence specified therein. Clause 4(a) of the SEC provides that FDHs shall only perform domestic duties for the employer as per the Schedule of Accommodation and Domestic Duties attached to the SEC. It is also stated in Clause 4(b) of the SEC that FDHs shall not take up any other employment with any other person. EAs shall not aid or abet FDHs to work in other places or carry out any work for any other person, or otherwise the EAs concerned may be liable for aiding or abetting FDHs to breach their conditions of stay as mentioned in paragraph 3.9.2 above.

3.10 Not to aid or abet employers to breach EO on payment of wages

3.10.1 According to EO, employers must pay their employees on time and not to deduct wages unlawfully[8] . EAs shall not aid or abet employers to underpay their employees, or make unlawful deduction from wages. An employer who fails to pay wages to an employee on time commits an offence and is liable, upon conviction, to **a maximum penalty of a fine of $350,000 and to imprisonment for three years.** Making unlawful deduction from wages of an employee is also an offence and shall be liable to **a maximum penalty of a fine of $100,000 and to imprisonment for one year.** EAs or any persons aiding or abetting the commission of such offences shall be guilty of the like offence and be liable to the same penalty.

3.10.2 If the placement involves FDHs, EAs shall not aid or abet employers to offer FDHs a wage lower than the prevailing Minimum Allowable Wage (MAW) when the SEC is signed, nor shall they advise employers to make unlawful wage deductions for any reasons (e.g. repaying a loan to a third party including overseas intermediaries), or pay wages to a third person instead of directly to FDHs. As stated in paragraph 3.10.1 above, EAs or any persons aiding or abetting employers to make unlawful deductions from wages of an employee shall be guilty of the like offence and be liable to the same penalty therefor

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[8] Section 32 of EO prohibits an employer from deducting wages from his/her employee, except under certain circumstances, including:

(a) deductions for absence from work. The deduction shall not exceed a sum proportionate to the period of time the employee is absent from work;

(b) deductions for damage to or loss of the employer's goods, equipment, or property by the employee's neglect or default. In any one case, the sum to be deducted shall not exceed the equivalent in value of the damage or loss suffered by the employer or $300, whichever is the less. The total of such deductions shall not exceed one quarter of the wages payable to the employee in that wage period;

(c) deductions for the recovery of any advance or over payment of wages made to the employee. The total sum to be deducted shall not exceed one quarter of the wages payable to the employee in that wage period;

(d) deductions, with the employees' written consent, for the recovery of any loan made by the employer to the employee;

The total of all permitted deductions, excluding deductions for absence from work and certain deductions made pursuant to court orders, shall not exceed one half of the wages payable to the employee in that wage period.

under EO. Any person, including EAs, who aids or abets another person (e.g. employers) to make false statement or representation to an Immigration Officer by proclaiming to pay MAW on the SEC but subsequently underpays the FDH during the employment period, shall be liable for an offence under IO, subject to **a maximum penalty of a fine of $150,000 and to imprisonment for 14 years** upon conviction on indictment.

3.11 Personal documents and property of job seekers

3.11.1 EAs shall not retrieve or withhold any personal property of job seekers, including but not limited to their passports, personal identification documents, employment contracts, bank credit or debit cards, school certificates, or any other materials distributed to the job seekers by LD or other relevant authorities (e.g. Consulates-General (CGs)) without their explicit consent. Withholding the personal property of job seekers, including but not limited to the items mentioned above, without their explicit consent may constitute an offence, for example, under the Theft Ordinance (Cap. 210). If convicted upon indictment for theft, a person shall be liable to **a maximum penalty of imprisonment for 10 years.**

Chapter 4

Standards which the Commissioner for Labour expects from employment agencies

4.1 Introduction

4.1.1 According to section 62A(1) of EO, C for L may issue codes of practice setting out principles, procedures, guidelines and standards for the operation, management or control of EAs.

4.1.2 All personnel of EAs must comply with the requirements and standards set out in this CoP. LD may issue warning letters to EAs for rectification of irregularities detected, including but not limited to failing to meet the statutory requirements and/or standards set out in this CoP. C for L may consider, amongst other relevant factors, the relevant track records[9] of the EAs and/or their capability of meeting such requirements/standards in making decision of revoking, or refusing to issue or renew EA licences under sections 53(1)(c)(iva), 53(1)(d)(iii) and 53(1)(e)(ii) of EO.

4.1.3 C for L may, for the purpose of protecting the public interest, publish information on his/her issuance of any warning or any disciplinary action taken against an EA for contraventions of EO, EAR and/or this CoP.

4.1.4 Some standards set out in this Chapter are particularly relevant to EAs engaged in FDH placements. FDHs help meet the long-standing shortage of full-time live-in domestic workers in the Hong Kong labour market. They also enable more local women (especially those with young children or elderly family members) to stay, enter or re-join our labour market which is currently facing manpower shortage. FDHs, particularly those who come to Hong Kong to work for the first time, may lack family support, face language barriers, and require time to establish their social network in Hong Kong. Most newly-arrived FDHs need more attention, care and assistance to settle and integrate into our society than local workers. EAs are one of the institutions that FDHs know and may approach for assistance, particularly shortly after their arrival in Hong Kong. Therefore, EAs have a duty in ensuring proper placement of their FDH clients.

4.1.5 FDHs, like local workers, enjoy the statutory employment rights and benefits under EO and the Employees' Compensation Ordinance (ECO). In addition, the Hong Kong Special Administrative Region (HKSAR) Government has prescribed an SEC for FDHs, under which they enjoy wage protection through MAW, and benefits provided by their employers including free accommodation, free food (or food allowance in lieu),

[9] For example, whether systematic and intentional abuse has been detected or EAs have persistently failed to meet the requirements and/or standards set out in this CoP, as well as records of failure to rectify upon warning of LD, etc.

free medical treatment, and free passages to and from their home countries, etc. To ensure FDHs are aware of their rights and obligations as well as the channels available for seeking assistance, the HKSAR Government carries out various promotional and educational activities to enhance their awareness, and collaborates closely with the CGs of FDHs' home countries in Hong Kong.

4.2 Senior management's responsibilities

4.2.1 The licensee, company director(s), nominated operator and persons in senior management of an EA have the responsibility and are fully accountable for the operation of their EA.

4.2.2 The licensee, company director(s), nominated operator and persons in senior management of an EA are required to closely supervise their staff. They will be held accountable for all acts and conducts of all their staff in relation to the provision of job-placement services, even though they may not be the one(s) who failed to meet the statutory requirements and/or standards set out in this CoP.

4.2.3 The relevant government departments and related organisations may need to contact the licensee, company director(s) and/or nominated operator if and where necessary. As such, an EA is required to notify EAA as soon as practicable (preferably within 14 days) of any change of the contact particulars of the licensee, company director(s) and/or nominated operator.

4.2.4 To protect the interests of job seekers, the EA licensee or the person intending to be the licensee should, when making an application for a licence and an application for renewal of a licence, inform EAA as to whether his/her EA is operating at the same premises of any financial institution; and whether the EA licensee or the person intending to be the licensee is at the same time the responsible person of any financial institution.

4.2.5 To ensure that EAs comply with the relevant requirements, C for L will require EAs to provide information relating to the temporary accommodation provided for FDH job seekers. The EA licensee is required to provide the relevant information and/or document(s) to EAA as soon as possible within the time limit and in the manner specified by C for L.

4.2.6 The licensee, company director(s), nominated operator and persons in senior management of an EA should exercise caution and professional judgment in selecting and/or cooperating with any business partners within and outside Hong Kong. For example, they should consider whether their business partner(s) has (have) obtained all necessary licence(s) from the relevant authorities, and have due regard to their records in complying with the relevant laws, codes of practice and guidance notes, if applicable. EAs engaged in FDH placements may check with the governments of the

home countries of FDHs and/or their CGs in Hong Kong direct for the standing of their potential business partner(s) in case of doubt. When EAs provide job referral services involving job seekers outside Hong Kong (including FDHs), the licensee, company director(s) and/or nominated operator should consider the reliability of information about the job seekers provided by their business partner(s) located outside Hong Kong, including but not limited to the academic qualifications, skills, training received, medical examination reports, etc.

4.3 Display of notices as required by law and government authorities

4.3.1 As set out in the statutory requirements in paragraph 3.4.1 above, EAs are required to display their licences and Part II of the Second Schedule of EAR regarding the prescribed commission at the window-panels (if applicable), billboards near the entrance, or service counters of their licensed premises. This ensures that employers and job seekers could easily notice and read such important information once they enter the premises. If an EA maintains a website and/or mobile application, the licence number of the valid EA licence should also be displayed thereat for easy reference by the public.

4.4 Acting honestly and exercising due diligence

4.4.1 To facilitate job seekers and employers to make informed decisions, EAs should exercise due diligence in checking the accuracy of information provided by both job seekers and employers as far as practicable, including the information provided in the resumes of job seekers (e.g. the accuracy and/or validity of the qualifications and work experience set out therein) and the details about the jobs (e.g. information on employers, job descriptions, remunerations and benefits, etc.). At the time of accepting payment of their service fees, EAs should ensure that the candidates offered to employers are available for filling the vacancy, and could satisfy the qualifications and/or requirements (e.g. language proficiency, skills, past work experience, etc.), if any, set out specifically by the employers. EAs should not adopt business practices such as providing monetary incentives to FDHs in employment to induce them to terminate their employment contracts prematurely.

4.4.2 EAs should also ensure that any information that is made available to employers (e.g. medical examination reports, language and skills assessment reports of FDHs) or to job seekers (e.g. information about the job and accommodation arrangements provided by employers) is consistent with the facts made known to them. If there are reasonable grounds for EAs to suspect the accuracy of information submitted by job seekers or employers, or that some information is not complete, EAs should seek clarification and further information from the party concerned (e.g. the data subject and/or the business partners within or outside Hong Kong referring the employer/job seeker(s)). EAs should refrain from using any doubtful information before it has been clarified.

4.5 Maintaining transparency in business operations

4.5.1 EAs should set out the service terms, fees schedules and complaint procedures in writing in the service agreements that they enter into with job seekers and employers respectively. To avoid disputes, EAs should request job seekers and employers to acknowledge in writing that they understand the terms provided in the respective service agreements. EAs should also provide job seekers and employers with the opportunity to raise questions and provide them with sufficient information through suitable means. These are particularly relevant to EAs engaged in FDH placements.

4.5.2 Where EAs are collaborating with overseas business partners (e.g. recruitment agents or training centres in FDHs' home countries) in the placement of FDHs, EAs should disclose to employers and FDH job seekers the names of their business partners. If EAs claim to be authorised by foreign government(s) to provide placement services to their nationals, they should display the relevant accreditation(s) or certificate(s) in their business addresses and on their websites (if applicable).

4.6 Drawing up written service agreements with job seekers and employers

4.6.1 To protect the interests of job seekers, employers and EAs, and to avoid/minimise their misunderstanding on the services to be provided by EAs, EAs are required to draw up service agreements agreed by concerned parties (i.e. one between EAs and job seekers; and another between EAs and employers), preferably at the beginning of the job-placement process or before any payment is made. The service agreements should list out the service terms and scope, as well as the fees (if any) to be charged by EAs for their services[10]. EAs should retain copies of the written service agreements drawn up with job seekers and employers as part of their placement records for inspection by LD.

4.6.2 A sample service agreement between EAs and FDH job seekers as well as between EAs and FDH employers are provided at **Appendices 3a and 3b** respectively for reference by EAs involved in FDH placements. EAs involved in FDH placements may include other items as appropriate when they draw up their own written service agreements with FDH job seekers and employers, provided that the items are fair, reasonable and in line with the relevant laws and this CoP. However, such agreements should include the items as set out below:

[10] According to EO and EAR, the maximum commission which may be received by an EA from a job seeker shall be an amount not exceeding a sum equal to 10% of the first-month's wages received by the job seeker for each employment that he/she has been successfully placed by the EA. The provisions are applicable to **all** job seekers.

(a) The service agreement between FDH EAs and FDH job seekers (**Appendix 3a**) should include, but not limited to, the following items:

- The types of service to be provided (e.g. seek for new employer, direct hire, contract renewal, etc.);
- Whether commission would be charged, and if so, the amount, which is in any case no more than 10% of the FDH's first-month's wages received after successful placement;
- The date on which the commission will be paid (which cannot be prior to receipt of first-month's wages by FDHs after successful placement); and
- The FDH's employment history in the past two years, etc. (if the FDH agrees to disclose such information to prospective employers).

(b) The service agreement between FDH EAs and FDH employers (**Appendix 3b**) should include, but not limited to, the following items:

- The types of service to be provided (e.g. to recruit FDHs from overseas, to recruit FDHs already working in Hong Kong, direct hire, contract renewal, etc.);
- Details of the fees to be charged by the EA, that is, the amount of fee set for each service category respectively, including service fee related to processing the FDH's visa, service fee related to arranging the FDH's arrival in Hong Kong, service fee related to medical examination or insurance, service fee related to employment of the FDH, etc. The service items covered by each fee category (e.g. visa fee and departure expenses at the domicile of the FDH, one-way airfare to Hong Kong, medical examination fee, etc.) should also be specified;
- The payment schedule to the EA (e.g. by instalments or payment upon completion of service);
- Whether the EA would provide a refund or arrangements for replacement of FDH in case its services are not delivered in full (e.g. the selected FDH fails to obtain an employment visa, he/she fails to report for duty as per the agreed date, or the employer's application is not approved by the authorities, etc.);
- Whether the EA would charge service fees in case the selected FDH fails to report for duty eventually;
- Whether the EA would provide a refund or arrangements for replacement of FDH in case of premature employment contract termination initiated by the FDH within the two-year contract period;

- Whether the EA would charge service fees in case replacement of FDH is required;
- The employer's history of employing FDHs, if any, in the past two years (if the employer agrees to disclose such information to prospective FDHs);
- When an FDH has been selected, the information (e.g. name, nationality, passport number) and a copy of the resume of the selected FDH (sample at **Appendix 4**); and
- The estimated time required for various stages of the application under processing and the expected date when the FDH will report for duty.

4.6.3 In addition, a sample service agreement between EAs and other job seekers, as well as between EAs and other employers, are provided at **Appendices 3c and 3d** respectively for reference by EAs involved in non-FDH placements. EAs may include other items as appropriate when they draw up their own written service agreements with job seekers and employers, provided that the items are fair, reasonable and in line with the relevant laws and this CoP.

4.7 Provision of payment receipts

4.7.1 EAs should provide receipts for any payments received from job seekers and employers as soon as practicable. The receipts should bear the names of EAs. Copies of receipts issued to job seekers and employers should be kept together with the placement records for inspection by LD.

4.7.2 To provide more guidance to EAs involved in FDH placements, a sample of the receipts provided to FDH jobs seekers and employers are provided at **Appendices 5a and 5b** respectively. EAs may include other items as appropriate when they draw up their own receipts for FDH job seekers and employers, provided that the items are fair, reasonable and in line with the relevant laws and this CoP. However, such receipts should include the items as set out below:

(a) The receipt to FDH job seekers **(Appendix 5a)** should include, but not limited to, the following items:

- The name of the EA;
- The company chop of the EA;
- The name of the FDH;
- The amount of payment received from the FDH and its nature; and
- The date of payment receipt, etc.

(b) The receipt to FDH employers **(Appendix 5b)** should include, but not limited to, the following items:

- The name of the EA;
- The company chop of the EA;
- The name of the employer;
- The name of the FDH to whom the employer has offered employment;
- The agreed date of reporting for duty; and
- The amount of payment received and its nature, etc.

4.7.3 A sample receipt provided to other job seekers and other employers are provided at **Appendices 5c and 5d** respectively. EAs may include other items as appropriate when they draw up their own receipts for job seekers and employers, provided that the items are fair, reasonable and in line with the relevant laws and this CoP.

4.8 Provision of the employment contract to the contracting parties

4.8.1 If an EA is responsible for handling the employment contract between employers and job seekers, the EA should provide the signed originals of the contract to both signatories as soon as practicable.

4.8.2 The HKSAR Government has prescribed SECs for FDHs and workers imported under labour importation schemes respectively. EAs should ensure that FDHs and imported workers enter into SECs with their employers, and should provide originals of the signed contract to both signatories for retention as soon as practicable. A sample SEC for FDHs is provided at **Appendix 9**. For information and/or sample SECs for other labour importation schemes, please refer to https://www.labour.gov.hk/eng/plan/labourimportation.htm.

4.8.3 It is very common for EAs involved in FDH placements to assist both employers and FDH job seekers in handling SECs (e.g. arranging SECs to be signed by FDH job seekers who are still residing in their home countries and arranging the signed SECs to be notarised by the CGs concerned (if applicable)). In cases where FDH job seekers are still residing in their home countries and are unable to sign the SECs simultaneously with the employers, EAs should still provide a copy of the SEC that has been signed by the employer for the latter's retention. EAs should arrange to send the SEC signed by both parties to both FDHs and employers as soon as practicable. EAs should retain the acknowledgement or confirmation of receipt of the SEC as part of their placement records for inspection by LD.

4.8.4 To enhance FDH job seekers' understanding of the accommodation arrangements proposed by their employers in the Schedule of Accommodation and Domestic Duties attached to the SEC, EAs should remind employers to provide photos and/or other information (e.g. written descriptions) of the proposed accommodation. Upon receipt of such information, EAs should pass it onto the FDH job seeker concerned for his/her information before signing the SEC.

4.9 Maintaining professional knowledge and staying up to date on the latest laws and regulations relating to the industry

4.9.1 EA licensees, nominated operators, related persons of or individuals employed by the licensees should ensure that they have reasonable knowledge of the legislation relevant to the operation of EAs, including but not limited to EO, EAR, ECO, TDO and PDPO, as well as anti-discrimination ordinances that are employment-related, and requirements and standards set out in this CoP. EAs engaged in FDH placements should also be familiar with the SEC and other documents relevant to the employment of FDHs. EAs should also be vigilant to the developments in personal data privacy issues by referring to the related guidance and code of practice(s) issued by PCPD from time to time.

4.10 Promoting job seekers' and employers' awareness of their rights and obligations

4.10.1 The HKSAR Government attaches great importance to enhancing job seekers' awareness of their employment rights and the available channels for seeking assistance. For employers, it is particularly important for them to understand and observe their obligations relating to employment matters.

4.10.2 EAs, being the intermediaries between job seekers and employers, should clearly explain to the clients (i.e. job seekers and employers) their statutory rights and obligations, and ensure that the clients are fully aware of and understand such.

4.10.3 Local job seekers may have more channels to obtain information on their labour rights and are generally familiar with how to approach the relevant authorities (particularly LD), if they have any enquiries. This may not be the case for FDHs, particularly those who have newly arrived in Hong Kong.

4.10.4 EAs should brief FDHs on their rights under the SEC, EO, ECO, PDPO, and anti-discrimination ordinances that are employment-related, as well as the immigration regulations relevant to FDHs, including the general application procedures and

arrangements concerning the change of employers[11]. EAs should also brief FDHs on where they can seek assistance from the HKSAR Government and/or other related organisations (e.g. relevant CGs). To enhance FDHs' awareness of their rights under the SEC, EAs should provide FDHs with a copy of the sample SEC in their mother language (**Appendix 9**), and request the FDHs concerned to acknowledge or confirm in writing that they have been briefed on the content and provided with a copy of the sample SEC. EAs should retain the acknowledgement or confirmation as part of their placement records for inspection by LD.

4.10.5 Employers of FDHs, especially those who employ FDHs for the first time and may not be familiar with employment matters, may not fully understand their obligations in relation to the employment of FDHs. EAs should brief FDH employers properly about their obligations under EO, IO and the SEC. EAs should also remind FDH employers to take out suitable employees' compensation insurance for their employees as required under ECO and their obligations under Clause 9 of the SEC in relation to medical expenses of FDHs.

4.10.6 While the HKSAR Government will continue to educate and raise awareness among FDHs and their employers about their respective rights and obligations, EAs, being the primary contact point for both FDHs and their employers, are effective channels for disseminating relevant publications and publicity materials to them. In this regard, EAs involved in FDH placements should observe the following standards:

(a) To prominently display the publicity materials (e.g. posters, pamphlets and guidebooks) produced by LD and/or other government departments on the rights of FDHs within the EAs' premises so that they can be easily accessed by FDHs and their employers. Suggested display locations include window-panels, service counters, billboards, etc., which are prominently located within the EAs' premises. If EAs have websites and/or mobile applications, they should also post a link to LD's website thereon to facilitate access to the relevant publicity materials by FDHs and their employers.

(b) To provide FDHs and/or their employers with the guidebooks, information pamphlets, reminder cards and leaflets relating to the rights and benefits of FDHs and the obligations of employers as published by LD or other government departments and related organisations (refer to part (B) of Chapter 5 for details).

[11] Generally speaking, FDHs are expected to complete their two-year employment contract while working in Hong Kong. An FDH who wishes to apply for a change of employer must first return to his/her place of origin and submit a new employment visa application to ImmD. In exceptional circumstances under which the original employer is unable to continue the contract due to transfer, migration, death or financial reasons, or if there is evidence suggesting that an FDH has been abused or exploited, he/she may apply for a change of employer in Hong Kong, without first returning to the place of origin. If an FDH is suspected of abusing the arrangements for premature termination of contract to change employers, his/her employment visa application may be refused. The relevant record will also be taken into consideration by the Government in assessing his/her future applications for employment visas.

(c) To provide the sample forms listed below to facilitate FDHs and their employers in record-keeping or for perusal as and when necessary:

- Sample wage receipt for FDHs (**Appendix 10**) and sample leave record of FDHs (**Appendix 11**);
- Sample letter of termination of SEC initiated by FDH (**Appendix 12a**) and by FDH employer (**Appendix 12b**); and
- Sample receipt for payments upon termination/expiry of SEC (**Appendix 13**).

These publications, publicity materials and sample forms may be updated from time to time. EAs should refer to LD's Employment Agencies Portal for the latest versions published.

4.10.7 To avoid disputes, EAs should request FDHs and their employers (whoever as appropriate) to confirm in writing that they have been briefed in detail on their rights, obligations and the immigration regulations relevant to FDHs, and that they understand the content. EAs should retain the written confirmation as part of their placement records for inspection by LD, particularly in case of any disputes or complaints against the EAs concerned.

4.11 Adopting good record management practices

4.11.1 EAs are required to keep records relating to their dealings with job seekers and their employers. Apart from keeping the records as required under the law (see paragraph 3.4.2 above), EAs should provide job seekers and employers with copies of all documents that they have signed for the purpose of job referral. They should also keep other relevant records including service agreements signed (paragraph 4.5.1 and 4.6.1), payment receipts issued (paragraph 4.7.1), acknowledgements from employers and FDHs regarding their receipt of the signed SEC (paragraph 4.8.3), sample SECs in FDHs' mother language (paragraph 4.10.4), enquiries handled, and assistance or advice rendered to job seekers and their employers, etc. These records could serve as useful information in case the government authorities contact EAs to investigate disputes in relation to their dealings with employers and/or job seekers. A sample acknowledgment/confirmation for FDHs and their employers, confirming receipt of the various documents and information required in this Chapter and acknowledging that they have been briefed on their rights and obligations, are provided at **Appendices 6a** and **6b** respectively.

4.12 Avoiding involvement in financial affairs of job seekers

4.12.1 EAs should not be directly or indirectly involved in the financial affairs of job seekers. They should not advise, arrange, encourage or force job seekers to take out loans from any financial institutions or individuals, or provide job seekers with information relating

to personal loans (e.g. information on financial institutions). EAs should not help any persons, organisations or companies (including recruiting agents or intermediaries located in or outside Hong Kong) to collect fees from job seekers for arranging them to come to Hong Kong, nor should they collect training fees from job seekers for any recruiters, agents or training centres, etc. located in or outside Hong Kong. They should not advise, arrange, encourage or force job seekers to borrow money from any institutions within or outside Hong Kong, regardless of the purpose of the loan (e.g. for personal use or for job placement/training within or outside Hong Kong).

4.13 Job seekers' passports or personal identification documents

4.13.1 The passports or personal identification documents of job seekers should be kept by themselves. In cases where EAs need to obtain and temporarily keep the passports or personal identification documents of job seekers when arranging local job seekers to seek employment outside Hong Kong or non-local job seekers to work in Hong Kong, EAs must explain the reason(s) to the job seeker concerned and seek his/her written consent. Upon obtaining the passport or personal identification document, EAs must provide the job seeker with a written acknowledgement. Furthermore, upon obtaining the employment or relevant visa for the job seeker concerned, EAs should return the passport or personal identification document directly to the job seeker without delay and record the return in writing (sample at **Appendix 7**). EAs should not withhold job seekers' passports, personal identification documents or employment contracts, etc. in order to force them to pay or repay any sum of money such as training fees, fees for arranging them to come to Hong Kong, loans made by job seekers, etc., regardless of whether the sum of money arose before they came to Hong Kong.

4.14 Protecting job seekers from false self-employment

4.14.1 Prior to entering into a contract, EAs should explain clearly to the job seeker the nature of the job, including whether he/she will have an employment relationship with the organisation that he/she is placed, whether he/she will be employed as the EA's direct employee, or whether he/she will be a self-employed person/contractor. EAs should also inform the job seeker concerned about the differences between an employee and a self-employed person/contractor, specifically highlighting that the latter may not be entitled to employment rights and benefits. EAs themselves should not change and also should not encourage employers to change the status of their employees to self-employed persons/contractors for the reasons of avoiding their obligations under EO, ECO and other relevant laws.

4.15 Arrangements for the public posting, display or disclosure of personal data of job seekers and related individuals

4.15.1 To protect the privacy of job seekers and related individuals (including their family members and former employers), EAs should not publicly post, display or disclose sensitive personal data of job seekers (e.g. their address, passport and HKID number), as well as the personal data of their family members and former employers, through channels including their websites or mobile applications, broadcast messages in instant messaging applications, social media, shop windows, etc. If EAs intend to publicly post, display or disclose the personal data of job seekers, they must obtain prior written consent from the job seekers regarding the data items to be made public and the channels of disclosure. The sample clauses for the relevant Personal Information Collection Statement and for seeking written consent from job seekers are provided at **Appendix 8**. A sample of the relevant written agreement for job seekers is also available at Part X of **Appendix 4**.

Chapter 5

References

To implement and comply with the statutory requirements and standards set out in this CoP, this Chapter provides appendices and sample forms as mentioned in Chapter 3 and 4 as well as some useful reference materials for EAs' easy reference.

(A) LIST OF APPENDICES (INCLUDING SAMPLE FORMS FOR EAs)

- Sample record sheet for keeping information of job seekers (English/Chinese) – **Appendix 1**
- Common requirements and guidelines relevant to the operation of boarding facilities or bedspaces by employment agencies (including legislation, subsidiary legislation and codes of practice) – **Appendix 2**
- Sample service agreement for EAs
  - Sample service agreement with FDH job seekers (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 3a**
  - Sample service agreement with FDH employers – **Appendix 3b**
  - Sample service agreement with other job seekers (English/Chinese) – **Appendix 3c**
  - Sample service agreement with other employers (English/Chinese) – **Appendix 3d**
- Sample resume of FDH job seekers (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 4**
- Sample receipt from EAs
  - Sample receipt to FDH job seekers (English/Chinese/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 5a**

- Sample receipt to FDH employers (English/Chinese) – **Appendix 5b**
- Sample receipt to other job seekers (English/Chinese) – **Appendix 5c**
- Sample receipt to other employers (English/Chinese) – **Appendix 5d**

- Sample acknowledgment/confirmation for FDH job seekers and their employers
  - Sample acknowledgment/confirmation for FDH job seekers (English/Chinese/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 6a**
  - Sample acknowledgment/confirmation for FDH employers (English/Chinese) – **Appendix 6b**
- Sample confirmation on job seekers' consent for collection/temporary keeping of passport or personal identification document(s) by employment agencies and sample record for document(s) exchange (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 7**
- Sample clauses for personal information collection statement and written consent from job seekers on data items to be made public and channels of disclosure – **Appendix 8**
- Sample SEC for FDHs (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 9**
- Sample wage receipt for FDHs (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 10**
- Sample leave record of FDH (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer) – **Appendix 11**

- Sample letter of termination of SEC
  - Sample letter of termination initiated by FDH **– Appendix 12a**
    (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer)
  - Sample letter of termination initiated by FDH employers **– Appendix 12b**
    (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer)
- Sample receipt for payment upon termination/expiry of SEC **– Appendix 13**
  (English/Tagalog/Indonesian/Hindi/Thai/Sinhala/Myanmar language/Khmer)

* These sample forms may be updated from time to time. Please visit: https://www.eaa.labour.gov.hk/en/resources.html for the latest versions.

(B) RELEVANT GUIDEBOOKS AND PAMPHLETS

- Guidebooks, information pamphlets, reminder cards and leaflets which EAs involved in FDH placements should provide to FDHs and/or their employers in accordance with the standards stipulated in paragraph 4.10.6(b)
  - Please visit: https://www.eaa.labour.gov.hk/en/infopack.html
- Other guidebooks and pamphlets for EAs' reference
  - Please visit: https://www.eaa.labour.gov.hk/en/resources.html

(C) USEFUL CONTACTS

1823 (Government general enquiries and complaints service)

Mobile Application : Tell me@1823
Telephone : 1823
SMS (text only) : 6163 1823
Fax : 2760 1823
Email : tellme@1823.gov.hk
Post: Tsuen Wan PO Box 1823

Labour Relations Division, Labour Department

※ Telephone : 2717 1771 (handled by "1823")

Office	Address
Hong Kong	
Hong Kong East	12/F, 14 Taikoo Wan Road, Taikoo Shing, Hong Kong
Hong Kong West	3/F, Western Magistracy Building, 2A Pokfulam Road, Hong Kong
Kowloon	
Kowloon East	UGF, Trade and Industry Tower, 3 Concorde Road, Kowloon
Kowloon West	Room 1009, 10/F, Cheung Sha Wan Government Offices, 303 Cheung Sha Wan Road, Sham Shui Po, Kowloon
Kowloon South	2/F, Mongkok Government Offices, 30 Luen Wan Street, Mongkok, Kowloon
Kwun Tong	Units 801-806, 8/F, Tower 1, Millennium City 1, 388 Kwun Tong Road, Kwun Tong, Kowloon
New Territories	
Tsuen Wan	5/F, Tsuen Wan Government Offices, 38 Sai Lau Kok Road, Tsuen Wan, New Territories
Kwai Chung	6/F, Kwai Hing Government Offices, 166 - 174 Hing Fong Road, Kwai Chung, New Territories
Tuen Mun	Unit 2, East Wing, 22/F, Tuen Mun Central Square, 22 Hoi Wing Road, Tuen Mun, New Territories
Sha Tin & Tai Po	Rooms 304 - 313, 3/F, Sha Tin Government Offices, 1 Sheung Wo Che Road, Sha Tin, New Territories

* Please visit LD's website (https://www.labour.gov.hk/eng/tele/lr1.htm) for the latest address.

- **Government Departments and Related Organisations**

Organsations	Scopes	Telephones	Websites/emails
Immigration Department	Enquiries on IO / visa related matters	2824 6111	https://www.immd.gov.hk/ enquiry@immd.gov.hk
Customs and Excise Department	Enquiries on TDO	2815 7711	https://www.customs.gov.hk/ customsenquiry@customs.gov.hk
Office of the Privacy Commissioner for Personal Data	Enquiries on PDPO	2827 2827	https://www.pcpd.org.hk/ communications@pcpd.org.hk
Equal Opportunities Commission	Enquiries relating to anti-discrimination legislation	2511 8211	https://www.eoc.org.hk/
Independent Commission Against Corruption	Corruption Prevention Advisory Service	2526 6363	https://cpas.icac.hk/ cpas@cpd.icac.org.hk

(D) ENQUIRIES

- Employment Agencies Administration (EAA), Labour Department

  For enquiries about Part XII of EO, EAR and this CoP, you may contact EAA through:

Address : Unit 906, 9/F, One Mong Kok Road Commercial Centre, 1 Mong Kok Road, Kowloon

Telephone : 2115 3667 Fax : 2115 3756

Email : ea-ee@labour.gov.hk Employment Agencies Portal: https://www.eaa.labour.gov.hk

Record Sheet for Keeping Information of Job Seekers
Sample
求職者資料紀錄表
樣本

Details of Job Seeker **求職者資料**			**Details of Employer 僱主資料**		Date of Employment 受僱日期	Commission received from job seeker (must not be more than 10% of the job seeker's first-month's wages received for each successful job placement) (if no commission is charged, please indicate "NIL") 向求職者收取的佣金 (就每一宗成功介紹而言，不得多於求職者覓得職位後收取的第一個月工資的百分之十) (如無收取任何費用，請填「無」) *(Please keep copies of written receipts for Labour Department's inspection)* *(請保留書面收據副本以供勞工處查閱)*		
Name 姓名	Address and Contact Telephone no./Email address 地址及聯絡電話號碼／電郵地址	HKID no. (in case of a non-resident, passport no. and citizenship) 香港身分證號碼 (如非香港居民，其護照號碼及國籍)	Name 姓名或名稱	Address and Contact Telephone no./Email address 地址及聯絡電話號碼／電郵地址		Commission 佣金	Receipt no. 收據號碼	Date 日期

Common Requirements and Guidelines Relevant to the Operation of Boarding Facilities or Bedspaces by Employment Agencies (including Legislation, Subsidiary Legislation and Codes of Practice)

When employment agencies operate boarding facilities or bedspaces, they must comply with the laws of Hong Kong, **including but not limited to** the following common requirements. The applicable requirements (including legislation, subsidiary legislation and codes of practice) may vary from one facility to another, and employment agencies should seek independent professional advice if necessary. Furthermore, the following legislation, subsidiary legislation and codes of practice are administered by various government departments (including the Home Affairs Department, the Buildings Department, the Fire Services Department, the Electrical and Mechanical Services Department, etc.) and may be updated from time to time. Should there be any enquiries on these requirements, employment agencies should contact the relevant departments direct.

Legislation, subsidiary legislation or code of practice	Relevant items				
	Licence of guesthouse or bedspace apartment (if applicable)	Building structure	Fire safety	Health and hygiene	Other equipment
Hotel and Guesthouse Accommodation Ordinance (Cap. 349) *	✓	✓	✓	✓	✓
Bedspace Apartments Ordinance (Cap. 447) #	✓	✓	✓	✓	✓
Fire Services Ordinance (Cap. 95)			✓		
Fire Service (Installations and Equipment) Regulations (Cap. 95 sub. leg. B)			✓		
Fire Services (Fire Hazard Abatement) Regulation(Cap. 95 sub. leg. F)			✓		
Fire Safety (Commercial Premises) Ordinance (Cap. 502)		✓	✓		
Fire Safety (Buildings) Ordinance (Cap. 572)		✓	✓		
Fire Safety (Industrial Buildings) Ordinance (Cap. 636)			✓		
Buildings Ordinance (Cap. 123) and its subsidiary legislation as well as the relevant codes and design manuals		✓	✓	✓	✓

Legislation, subsidiary legislation or code of practice	Relevant items				
	Licence of guesthouse or bedspace apartment (if applicable)	Building structure	Fire safety	Health and hygiene	Other equipment
Dangerous Goods Ordinance (Cap. 295)			✓		
Dangerous Goods (Application and Exemption) Regulation 2012 (Cap. 295 sub. leg. E)			✓		
Dangerous Goods (Control) Regulation (Cap. 295 sub. leg. G)			✓		
Gas Safety Ordinance (Cap. 51)			✓		
Electricity Ordinance (Cap. 406)					✓
Electricity (Wiring) Regulations (Cap. 406 sub. leg. E)					✓
A Guide to Licence Application under the Hotel and Guesthouse Accommodation Ordinance *	✓	✓	✓	✓	✓
Code of Practice for Bedspace Apartments #	✓	✓	✓	✓	✓
Codes of Practice for Minimum Fire Service Installations and Equipment and Inspection, Testing and Maintenance of Installations and Equipment			✓		
Code of Practice for the Electricity (Wiring) Regulations					✓

In addition to the above, employment agencies may also visit the website of the Centre for Health Protection of the Department of Health to obtain health-related information: https://www.chp.gov.hk/en/recommendations/submenu/index.html.

* According to the Hotel and Guesthouse Accommodation Ordinance, premises are a hotel or guesthouse if the premises are held out as providing sleeping accommodation to any persons presenting themselves who are willing to pay a fee for the sleeping accommodation for a rental period of less than 28 consecutive days. They must obtain a hotel or guesthouse licence before commencing operation.

Under the Bedspace Apartments Ordinance, “bedspace” (床位) means any floor space, bed, bunk or sleeping facility used or intended to be used as sleeping accommodation for an individual, while “bedspace apartment” (床位寓所) means any flat in which there are 12 or more bedspaces used or intended to be used as sleeping accommodation under rental agreements.